

Short Title	Session and Chapter
Superannuation Act, 1935	25 & 26 Geo. 5. c. 23.
Government of India Act, 1935	26 Geo. 5 & 1 Edw. 8. c. 2.
Superannuation (Various Services) Act, 1938 ...	1 & 2 Geo. 6. c. 13.
Pensions (Increase) Act, 1944	7 & 8 Geo. 6. c. 21.
Superannuation Act, 1946	9 & 10 Geo. 6. c. 60.
National Insurance Act, 1946	9 & 10 Geo. 6. c. 67.
Pensions (Increase) Act, 1947	10 & 11 Geo. 6. c. 7.
Police Pensions Act, 1948	11 & 12 Geo. 6. c. 24.
Superannuation (Miscellaneous Provisions) Act, 1948	11 & 12 Geo. 6. c. 33.
Commonwealth Telegraphs Act, 1949	12 & 13 Geo. 6. c. 39.

CHAPTER 45

An Act to provide for the administration by the Minister of Pensions of veterans' pensions and other sums payable under the law of the United States of America in respect of certain persons; and for purposes connected therewith. [14th July 1949.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) If, as respects any person resident in the United Kingdom (hereinafter referred to as “the beneficiary”), it is agreed between the Minister and the Administrator of Veterans' Affairs that the next following subsection shall apply in relation to payments by the Administrator in respect of the beneficiary, the following provisions shall have effect.

(2) During the period for which it is agreed that this subsection is to apply (hereinafter referred to as “the period of administration by the Minister”), the Minister shall receive the said payments and shall hold them upon trust to deal with them as follows, that is to say,—

(a) by paying them to, or applying them in such manner as the Minister may think expedient in the interests of, the beneficiary, or

- (b) by investing them and either holding the investments for the time being representing them until the end of the period of administration by the Minister or, at such times and to such extent as the Minister may determine, realising the said investments and paying or applying as aforesaid the proceeds of the realisation thereof,

or partly in one way and partly in another, as the Minister thinks best conducive to the welfare of the beneficiary; and income accruing from investments held by the Minister in pursuance of this subsection shall be held by the Minister upon the like trusts.

(3) On the coming to an end of the period of administration by the Minister all money or investments then held by the Minister in respect of the beneficiary shall be held by the Minister upon trust to deal therewith in one of the following ways:—

- (a) the Minister may request the Administrator of Veterans' Affairs to specify to what person and at what time the said money or investments shall be paid over or transferred, and may pay over or transfer the money or investments accordingly;

- (b) if the money or investments have not been dealt with in pursuance of the last foregoing paragraph, the Minister may hold them on trust for the beneficiary;

- (c) if the beneficiary is then dead and the money or investments have not been dealt with in pursuance of paragraph (a) of this subsection, the Minister may, if he is satisfied that the money or investments, if paid or transferred under this paragraph, will not devolve under any enactment or rule of law relating to bona vacantia or escheat or any similar enactment or rule of law, either—

(i) pay or transfer the money or investments to the personal representative of the beneficiary to be dealt with in like manner as if they formed part of his estate, or

(ii) where the aggregate amount or value of the money or investments does not exceed one hundred pounds, pay or transfer them to the persons appearing to the Minister to be the persons who would be beneficially entitled thereto if they had formed part of the beneficiary's estate.

(4) An agreement under subsection (1) of this section shall not be made as respects a person in whose case a court in the United Kingdom has appointed a person to act as guardian, tutor,

factor loco tutoris, committee (including a person appointed to exercise any powers of a committee) or curator bonis:

Provided that nothing in this subsection shall prevent such an agreement being made in relation to any payments which the person so appointed as aforesaid would not be competent to receive and administer under his appointment.

(5) His Majesty may by Order in Council direct that this Act shall have effect as if the expression "the United Kingdom" in this section included the Isle of Man and the Channel Islands, and may by the same or any subsequent Order direct that so much of the last foregoing subsection as relates to the appointment of persons by courts in the United Kingdom shall have effect, in relation to the appointment of persons by courts in the Isle of Man or the Channel Islands, subject to such adaptations as may be specified in the Order.

2.—(1) This Act may be cited as the U.S.A. Veterans' Pensions (Administration) Act, 1949. Short title and interpretation.

(2) In this Act the expression "Administrator of Veterans' Affairs" means the Administrator of Veterans' Affairs appointed under the law of the United States of America, and includes any body or persons for the time being entrusted under that law with the discharge of any functions exercisable under that law at the passing of this Act by the said Administrator or his establishment; and the expression "the Minister" means the Minister of Pensions for the time being.

(3) In this Act references to investment shall include references to the placing of money in an account at any bank, and the expression "investments" shall be construed accordingly.

CHAPTER 46

An Act to indemnify John Burns Hynd, Esquire, John James Robertson, Esquire, and Albert Evans, Esquire, from any penal consequences which they may have incurred under the Succession to the Crown Act, 1707, the House of Commons (Disqualification) Act, 1782, or the House of Commons (Disqualifications) Act, 1801, in respect of certain matters arising before the passing of this Act, and to remove any disqualification for membership of the House of Commons so incurred by them.
[14th July 1949.]